

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: June 6, 2025

TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 2	24CV438574	Wells Fargo Bank, N.A. vs Gabino Morales	Motion for Summary Judgment Plaintiff's unopposed Motion for Summary Judgment is GRANTED in its entirety. (See Code Civ. Proc., § 437c(b)(3) ["[f]ailure to comply with th[e] requirement of a separate statement [that responds to the material facts contended by the moving party to be undisputed] may constitute a sufficient ground, in the court's discretion, for granting the motion"]; see also <i>Whitehead v. Habig</i> (2008) 163 Cal.App.4th 896, 902 [the "separate statement is required, not discretionary, on the part of each party, and [CCP section 437c(b)(3)] makes the failure to comply with this requirement sufficient grounds to grant the motion."].) Plaintiff to prepare and submit the final order and judgment within 10 days of the date of the hearing. (See Local Civil Rule 8(C) ("Proposed orders may not be submitted with moving papers before a hearing on a regularly noticed motion[.] ... If instructed to prepare an order after a hearing, the proposed order must be lodged with the court electronically in PDF format attached to Judicial Council Form EFS-020[.]").)

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LINE #	CASE #	CASE TITLE	RULING
LINE 3	24CV444510	CLEAR WIRE, INC. vs W. E. LYONS CONSTRUCTION CO. et al	Motion Compel Production of Documents Plaintiff/Cross-Defendant has conceded the merits of Defendants' motion. The Motion to Compel Responses is GRANTED. Plaintiff/Cross-Defendant shall produce documents responsive to Defendants' Request for Production of Documents, Set One, within 20 days of the date of service of the final order. The Court shall impose a monetary sanction upon a successful motion to compel unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (See Code of Civ. Proc., § 2031.300(c).) Plaintiff/Cross-Defendant's assertions that this is a "very document and numbers intensive case" and a "number of factors have made it difficult to coordinate" between counsel and Plaintiff/Cross-Defendant do not satisfy these exceptions. Defendant's request for sanctions in the amount of \$7,280.00 is GRANTED. These sanctions are imposed jointly and severally between Plaintiff/Cross-Defendant and its counsel and shall be paid with 30 days of service of the final order. Defendants to prepare the final order within 10 days of the date of the hearing.
LINE 4	24CV452679	Richard Vergason vs Global Loss Prevention, Inc. et al	Defendants' Motion to Compel Arbitration Ctrl Click (or scroll down) on Line 4 for tentative ruling.